IMPARTIAL ANALYSIS BY COUNTY COUNSEL

CALIFORNIA PINES COMMUNITY SERVICES DISTRICT

MEASURE O

The Board of Directors of the California Pines Community Services District (the "District") has placed Measure O on the ballot. Measure O proposes increasing the District's special parcel tax for community services district services from Sixty-Six dollars ($66.00) to One Hundred Sixteen dollars ($116.00) per year for each nonexempt parcel. The services funded by the tax are provided to Lake Units 1B, 3, and 4, and the Mobile Home Park of the District (collectively, the "CSD Area").

The services funded by the tax include maintaining power, water, and wastewater systems, solid waste collection, vector control, and road plowing and maintenance. Due to inflation and rising costs, the revenue currently available from the existing special parcel tax is inadequate to fund these services. Without additional revenue, the District may be forced to cut services.

This measure is authorized by Government Code Sections 61121(a) and 50075 *et seq.* The proposed tax is a special tax as defined in Article XIIIC of the California Constitution.

If approved, the increased special parcel tax of One Hundred Sixteen dollars ($116.00) per fiscal year for each nonexempt parcel would take effect commencing fiscal year 2027-28. The tax would be collected by the Modoc County Tax Collector and generate approximately Ninety-Eight Thousand dollars ($98,000.00) per year.

Tax proceeds would be placed in a special fund designated the "California Pines Community Services District Special Services Special Parcel Tax Fund" and applied only for providing community services district services. The funds will be subject to transparency and accountability provisions, including an annual report by the chief fiscal officer and an independent compliance audit commencing December 31, 2027.

The authority to levy the special parcel tax shall remain in effect unless a later ordinance approved by two-thirds of District voters either repeals the tax or establishes a termination date. The Board of Directors may not increase the maximum tax amount unless approved by two-thirds of the voters voting thereon.

Approval of Measure O requires at least two-thirds of the votes cast, as required by Article XIIIC, Section 2(d) of the California Constitution. If the measure does not receive the required two-thirds vote, the existing special parcel tax of Sixty-Six dollars ($66.00) per year shall remain in effect.

A “yes” vote is a vote in favor of increasing the District’s special parcel tax from Sixty-Six dollars ($66.00) to One Hundred Sixteen dollars ($116.00) per year for each nonexempt parcel to fund community services district services in the CSD Area.

A “no” vote is a vote against increasing the District’s special parcel tax and in favor of retaining the existing tax of Sixty-Six dollars ($66.00) per year for each nonexempt parcel.

This Impartial Analysis is hereby submitted to the Elections Officials in conformance with Section 9313 of the Elections Code of the State of California.

Margaret Long, Modoc County Counsel